

**Justification Review Document
For Sole Source - FAR Part 13.501***

(*Format follows FAR 6.303-2, but modified to reflect FAR subpart 13.5 procedures)

Program/Equipment: Maintenance services for a Scantron OMR Imaging Scanner (Model INSIGHT 150), including its auxiliary transport printer and controller hardware.

Authority: 41 U.S. Code 1901, as implemented in Federal Acquisition Regulation (FAR) 13.106-1(b)(1)(i) "Sole source (including brand-name) acquisitions under the authority of the simplified acquisition procedures for certain commercial items."

Amount: [REDACTED]

Prepared by:

Typed Name: [REDACTED]
Title: Contract Specialist

Date: 22 April 2025
E-mail: [REDACTED]

Contracting Officer:

Typed Name: [REDACTED]
E-Mail: [REDACTED]

Date Reviewed: 22 April 2025

Technical Representative:

Typed Name: [REDACTED]
Title: Program Analyst (Survey), DE-2

Date Reviewed: 22 April 2025

Requirements Representative:

Typed Name: [REDACTED]
Title: Program Analyst (Survey), DE-2

Date Reviewed: 22 April 2025

Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

Legal Counsel

Typed Name: [REDACTED]

4/17/2025

X [REDACTED]

Attorney

Signature:

Signed by [REDACTED]

[REDACTED]

[REDACTED]

**Sole Source Justification and Approval
Under FAR 13.501**

1. Contracting Activity: Army Contracting Command – New Jersey

2. Description of Action: This action requests approval for a new purchase order. The contract type is firm-fixed-price (FFP), utilizing Research, Development, Test and Evaluation (RDTE) funds. There are no sharing or ceiling arrangements.

3. Description of Supplies/Services: On behalf of the Army Research Institute (ARI), the Army Contracting Command – New Jersey has a requirement for Scantron OMR imaging scanner (Model iNSIGHT 150) hardware maintenance services, including the scanner, its auxiliary transport printer, and controller hardware. The place of performance is ARI, located at 6000 6th Street, Fort Belvoir, VA 22060-5610. The contract will cover a base period of 12 months with one 12-month option period.

4. Authority Cited: 41 U.S. Code 1901, as implemented in Federal Acquisition Regulation (FAR) 13.106-1(b)(1)(i) "Sole source (including brand-name) acquisitions under the authority of the simplified acquisition procedures for certain commercial items."

5. Reason for Authority Cited: ARI requires hardware maintenance services for its iNSIGHT™ 150 scanner, used in support of mission-critical data collection for Army readiness assessments. [REDACTED] is the only source reasonably available to provide this maintenance. According to a letter from [REDACTED] they are the sole authorized provider of hardware maintenance and support services for iNSIGHT™ and OpScan® brand scanners manufactured by SCN Worldwide d/b/a Scantron. The proprietary design of the iNSIGHT™ 150 scanner and its internal hardware components limit maintenance to the original equipment manufacturer's authorized service provider. No other vendor is authorized by the manufacturer to perform maintenance on these scanners.

Use of an unauthorized vendor would:

- Risk damaging the equipment
- Void any remaining manufacturer warranties
- Compromise the reliability of the scanner's operation

The iNSIGHT™ 150 scanner is capable of processing over 7,000 sheets per hour and plays a central role in ARI's ongoing operations. Without authorized maintenance, scanner failure would:

- Delay critical Army readiness assessments
- Disrupt operational timelines
- Potentially require replacement of the unit at a cost of [REDACTED]

Based on this information, the requirement meets the conditions of FAR 13.106-1(b)(1)(i)—only one source is reasonably available. The Government intends to award a sole-source contract to [REDACTED] to meet ARI's continued operational needs.

6. Efforts to Obtain Competition: A notice of intent to sole source was publicized on SAM.gov. However, given the unique circumstances of this requirement, [REDACTED] is the only known source capable of providing the required maintenance services. No exception under FAR 5.202 applies.

[REDACTED]

7. Actions to Increase Competition: This is a follow-on requirement; however, the prior acquisition was also conducted on a sole source basis due to Original Equipment Manufacturer (OEM) restrictions. [REDACTED] retains exclusive rights to provide maintenance for this specific scanner model. This limitation is beyond the government's control and precludes immediate competition.

8. Market Research: Market research confirms that [REDACTED] is the sole source provider for maintenance services for the Scantron OMR imaging scanner (Model iNSIGHT 150) and associated hardware. A sole source letter from [REDACTED] affirms their exclusive capability to provide these services, [REDACTED]. Furthermore, mandatory source screenings through CHES, AbilityOne, Federal Prison Industries, GSA Schedules, and strategic sourcing initiatives revealed no alternative vendors capable of providing the required maintenance. Given the criticality of maintaining the scanner for ongoing research efforts at ARI, the absence of viable alternatives, and the commercial nature of the services, it is recommended to solicit a quote directly from [REDACTED] on a sole source basis in accordance with FAR 13.106-1(b)(1)(i). This approach will expedite the procurement process and ensure the continued operation of the critical scanning equipment.

9. Interested Sources:

[REDACTED]

To date, no other sources have written to express interest in this acquisition. A notice of intent to sole source was published on SAM.gov. Any bids or proposals received in response to this notice will be considered; however, due to the sole source justification as detailed in this document, only offers capable of meeting the specialized maintenance requirements for the Scantron OMR Imaging Scanner (Model iNSIGHT 150) will be considered.

10. Other Facts: The recent acquisition of [REDACTED] has not altered the fundamental fact that [REDACTED] remains the sole authorized provider of maintenance services for this specific scanner model. This OEM restriction continues to necessitate a sole source procurement approach. The government requires uninterrupted maintenance support to ensure the continued functionality of the scanner, which is critical to ongoing research efforts at ARI. The cost of equipment downtime significantly outweighs the benefits of seeking alternative solutions that may not be compatible with the existing scanner.

a. Procurement history. The previous contract for this requirement, W15QKN-20-F-5002, was awarded to [REDACTED] under FAR 8.405-6(a)(1)(i)(B) – “Only one source is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized” and FAR 8.405-6(b)(1) – “Brand Name”. This firm-fixed-price contract, valued at \$76,230.60, covered the period from November 6, 2019, to November 5, 2024. The NAICS code was 541512, with a size standard of \$30,000,000.00. The prior justification cited [REDACTED] as the exclusive

[REDACTED]

OEM-authorized maintenance provider for the specific scanner model, a situation that persists under [REDACTED]. The successful performance under the previous contract demonstrates [REDACTED] continued ability to meet these specialized requirements. No instances of full and open competition for this requirement exist due to the persistent OEM restrictions. There are no unusual patterns in the procurement history. The circumstances justifying this sole source procurement remain consistent with the prior acquisition, driven by the OEM's exclusive maintenance authorization.

11. Technical Certification: I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.

4/11/2025

[REDACTED]

12. Requirements Certification: I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.

4/11/2025

[REDACTED]

13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. This determination is based on price analysis, including comparison of proposed pricing to historical pricing, catalog pricing, and an independent government estimate (FAR 13.106-3(a)). Certified cost or pricing data are not required (FAR 15.403-1(b)(3)).

4/11/2025

[REDACTED]

14. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

4/14/2025

[REDACTED]



APPROVAL

Based on the foregoing justification, I hereby approve the procurement of maintenance services for a Scantron OMR Imaging Scanner (Model iNSIGHT 150), including its auxiliary transport printer and controller hardware, for a total dollar value of \$33,336.78, on an other than full and open competition basis pursuant to the authority of 41 U.S.C. 1901, as implemented by FAR 13.106-1(b)(1)(i) (Sole source acquisitions under simplified acquisition procedures for commercial items), subject to availability of funds and provided that the services herein described have otherwise been authorized for acquisition.

